

POLITY 20 — STATE LEGISLATURE

Articles 168-213 | institution -> procedure -> accountability -> review

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CORE CONCEPT AND CONSTITUTIONAL ORIGIN

CENTRAL IDEA

Articles 168-212 create the State legislature: Governor + Assembly in every State, with a Council only where the Constitution and an Article 169 law provide one.

ORIGIN / TIMELINE

1861-1935: colonial legislative councils widen representation but retain executive dominance.
1935 Act: provincial autonomy and bicameral experience influence Constitution-making.
1950: Part VI, Chapter III commences.
1957/1985/2007: Andhra Pradesh Council created, abolished, and revived.
1969: Punjab and West Bengal Councils abolished by parliamentary laws.
1986: Tamil Nadu Council abolished; later revival legislation did not become operational.
2019: former Jammu and Kashmir Council ended through reorganisation.

DESIGN VERDICT

Assembly = direct mandate + confidence + supply + final ordinary-Bill control.
Council = optional continuity + reconsideration, never a co-equal federal chamber.

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ARTICLES 168-177: COMPOSITION, DURATION, SESSIONS AND PARTICIPATION

ARTICLE 168 -> Governor plus one or two Houses: Governor is not a House member.
ARTICLE 169 -> Assembly total membership majority + two-thirds present/voting; Parliament may then create/abolish Council by ordinary law, not Article 368 amendment.
ARTICLE 170 -> Assembly directly elected from territorial constituencies; ordinary range 60-500, subject to constitutional/statutory exceptions and delimitation controls.
ARTICLE 171 -> Council <= one-third Assembly and > =40; 1/3 local bodies, 1/12 graduates, 1/12 teachers, 1/3 MLAs elect non-MLAs, remainder nominated for named fields.
ARTICLE 172 -> Assembly five years unless dissolved; Council continuing body.
ARTICLE 173 -> citizenship, oath-related requirement, age 25 Assembly / 30 Council, statutory qualifications.
ARTICLE 174 -> summon/prorogue/dissolve Assembly; no fixed session count; six-month maximum gap rule.
ARTICLE 175 -> Governor may address either/both Houses and send messages.
ARTICLE 176 -> special address after general election and first session each year.
ARTICLE 177 -> Ministers and Advocate-General may participate; vote follows membership.

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ARTICLES 178-193: OFFICERS, OATH, VOTING, VACANCY AND DISQUALIFICATION

ARTICLES 178-181 -> Assembly Speaker/Deputy Speaker: election, vacancy, acting and removal safeguards.
ARTICLES 182-185 -> Council Chairman/Deputy Chairman mirror, without Assembly-dissolution rule.
ARTICLE 186 -> salaries/allowances fixed by State law; constitutional interim protection.
ARTICLE 187 -> separate State-legislature secretarial staff; State law may regulate service conditions.
ARTICLE 188 -> oath/affirmation before Governor or appointed person before taking seat.
ARTICLE 189 -> majority present/voting; chair's casting vote; vacancies do not invalidate; default quorum ten or one-tenth, whichever greater, until State law provides otherwise.
ARTICLE 190 -> double membership, resignation accepted only if voluntary/genuine, and sixty-day absence route with constitutional exclusions.
ARTICLE 191 -> office of profit, court-declared unsound mind, insolvency, citizenship/allegiance, parliamentary-law grounds; clause (2) adds Tenth Schedule.
ARTICLE 192 -> Governor decides Article 191(1) sitting-member questions and must follow ECJ opinion.
ARTICLE 193 -> Rs 500 per day liability for knowingly sitting/voting without oath or while barred.

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PRIVILEGES, ETHICS AND JUDICIAL BOUNDARIES

ARTICLE 194: speech/vote and authorised-publication immunity + House/member/committee privileges. Protection is functional; it is not a licence for bribery or unrelated criminality.
ARTICLE 195 -> member salaries/allowances by State law.
1978 - 44TH AMENDMENT, SECTION 26: amended Article 194(3); removed the House of Commons reference and preserved the pre-commencement privilege baseline until the State Legislature defines privileges by law.
SPECIAL REFERENCE NO. 1 OF 1964 / KESHAV SINGH (1965): Legislative privilege and judicial power must coexist; jurisdictional constitutional questions remain reviewable.
RAJA RAM PAL (2007): Expulsion/privilege power exists, but substantive illegality, mala fides and unconstitutionality remain reviewable.
AMARINDER SINGH (2010): Punjab Assembly could not use privilege-based expulsion for conduct lacking the required nexus to House functioning.
SITA SOREN (2024): Articles 105/194 do not immunise bribery connected with speech or vote.
ARTICLE 212 SHIELD: mere procedural irregularity is protected; substantive illegality is not.

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ORDINARY BILLS, DEADLOCK AND LAPSE

ARTICLE 196 BASELINE: ordinary Bill may originate in either House in a bicameral State; prorogation does not lapse Bills.
ARTICLE 197 ASSEMBLY OVERRIDE: Assembly passes -> Council rejects / disagrees / holds >3 months -> Assembly repasses in same or next session -> Council rejects / disagrees / holds >1 month -> Bill deemed passed in Assembly's second-passage form.
NO STATE JOINT SITTING: Article 108 is a Union mechanism; there is no State counterpart.
LAPSE ON ASSEMBLY DISSOLUTION: pending in Assembly -> lapses, passed by Assembly, pending in Council -> lapses, pending in Council, not passed by Assembly -> does not lapse, passed by required House(s), awaiting Governor/President -> does not lapse.
COUNCIL-ORIGINATED BILL: If Assembly rejects it, Article 197 supplies no Council override.

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MONEY BILLS, FINANCIAL BILLS AND ASSEMBLY PRIMACY

ARTICLE 198: Money Bill: Assembly-only introduction on Governor's recommendation; Council may recommend within 14 days; Assembly accepts or rejects.
ARTICLE 199: only listed matters + incidental matters qualify; Assembly Speaker certifies.
ARTICLE 207(1) FINANCIAL BILL-I: contains Article 199(1)(a)-(f) matter plus other matter; Governor recommendation + Assembly-only introduction; then ordinary-Bill treatment.
ARTICLE 207(3) FINANCIAL BILL-II: would involve expenditure from Consolidated Fund; may originate either House, but cannot be passed without recommendation for consideration.
ASSEMBLY PRIMACY: confidence under Article 164(2) + grants under Article 203 + Money Bill control. Council neither removes ministry nor votes demands for grants.
TRAP: expenditure consequence alone does not convert every Financial Bill into a Money Bill.

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ARTICLES 200-201: ASSENT AND RESERVATION AFTER THE 2025 DOCTRINE

ARTICLE 200 - THREE CONSTITUTIONAL OPTIONS (2025 INSC 1333)
1 assent,
2 reserve for President,
3 withhold and return with comments, only for a non-Money Bill.
First proviso restricts/implements withholding; it is not a fourth free-standing option.
Second proviso mandates reservation if High Court powers are derogated so as to endanger its position.
ARTICLE 201: President may assent or withhold; may direct return of a non-Money Bill through Governor. State House(s) reconsider within six months; re-passage does not compel presidential assent.
STATE OF PUNJAB (10 NOV 2023): No indefinite inaction; withholding linked to return under the first proviso.
STATE OF TAMIL NADU (8 APR 2025, 2025 INSC 481): On its facts invalidated second-round reservation, prescribed timelines and used Article 142 deemed assent.
ARTICLE 143 OPINION (20 NOV 2025, 2025 INSC 1333): Called general timeline/deemed-assent reasoning erroneous; no rigid clock or deemed assent; no pre-enactment merits review; limited mandamus for glaring prolonged unexplained inaction. It advised on law; it did not appellate-set aside the Tamil Nadu inter partes relief.

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ARTICLES 202-207: BUDGET, GRANTS AND APPROPRIATION

ARTICLE 202 -> annual financial statement: receipts/expenditure; charged versus voted.
ARTICLE 203 -> charged expenditure discussed, not voted; Assembly alone votes demands for grants. Governor recommendation is required for a demand.
ARTICLE 204 -> Appropriation Bill authorises withdrawal from Consolidated Fund; no amendment may vary amount/destination or charged expenditure.
ARTICLE 205 -> supplementary, additional and excess grants use the Articles 202-204 logic.
ARTICLE 206 -> vote on account, vote of credit and exceptional grant.
ARTICLE 207 -> recommendation and introduction controls for financial Bills.
ACCOUNTABILITY CHAIN: estimate -> debate -> grant vote -> appropriation -> execution -> audit -> PAC follow-up.
COUNCIL LIMIT: may discuss the financial statement but cannot vote grants or overcome Assembly control.

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QUESTIONS, MOTIONS, COMMITTEES AND LOCAL HOUSE PRACTICE

CONSTITUTIONAL TEXT: Article 164(2): ministry collectively responsible to Assembly. Article 208: each House makes procedural rules, subject to Constitution. Articles 202-207: financial accountability framework.
LOCAL HOUSE RULES / DIRECTIONS / CONVENTIONS: Question Hour, Zero Hour or special mention, calling attention, short-duration discussion, adjournment/censure/no-confidence motions, cut motions, privilege procedure and committee details. Names, notices, admissibility, membership and referral vary by State.
COMMITTEE FUNCTIONS: PAC -> appropriation and CAG-linked audit. Estimates -> economy, efficiency and estimate presentation. Public Undertakings -> State enterprise scrutiny. Privileges/Ethics/Petitions/Subordinate Legislation/subject committees -> specialised control.
HARD LIMIT: Do not copy Lok Sabha rule numbers, committee sizes or a fixed DRSC structure into every State.

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ANTI-DEFECTION, SPEAKER NEUTRALITY AND CASE CHRONOLOGY

1985 - 52ND AMENDMENT, SECTION 5: inserted Article 191(2); section 6 inserted Tenth Schedule.
2003 - 91ST AMENDMENT, SECTION 5: removed paragraph 3 split protection; two-thirds merger protection remains under paragraph 4.
KIHOTO HOLLOHAN (1992): Presiding officer is a tribunal; final decision is judicially reviewable on recognised grounds.
RAVI NAIK (1994): Voluntarily giving up membership may be inferred from conduct, not only formal resignation.
RAJENDRA SINGH RANA (2007): Speaker cannot avoid deciding disqualification by accepting an unsupported split claim.
NABAM REBIA (2016): Speaker-removal notice restricted adjudication; correctness referred by SUBHASH DESAI (2023).
KEISHAM MEGHACHANDRA (2020): Absent exceptional circumstances, petitions should ordinarily be decided within three months; Court urged Parliament to consider an independent tribunal.
SUBHASH DESAI (2023): Political party, not a legislature-party faction, appoints the authorised whip/leader; larger-Bench reference leaves Nabam Rebia issue unresolved.
PADU KAUSHIK REDDY (31 JUL 2025): Review survives and Telangana petitions received a case-specific three-month direction.

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REPRESENTATION, AMENDMENTS, COUNCIL COMPARISON AND ARTICLE 213

1976 - 42ND AMENDMENT, SECTION 38: amended Article 170 delimitation/readjustment framework and introduced the freeze architecture.
2001 - 84TH AMENDMENT, SECTION 5: amended Article 170; extended freeze to first post-2026 census publication and enabled limited readjustment.
2003 - 87TH AMENDMENT, SECTION 4: substituted 2001 for 1991 census references in Article 170.
2019 - 104TH AMENDMENT, SECTION 2: amended Article 334: SC/ST reservation extended; Anglo-Indian special representation ceased after its period.
2023 - 106TH AMENDMENT, SECTIONS 2-5: inserted Delhi clauses and Articles 330A, 332A, 334A; one-third reservation for women in Lok Sabha/Assemblies, including within SC/ST seats, operates after Article 334A census-delimitation sequence. It does not cover Legislative Councils.
S.O. 1922(E), 16 April 2026 commenced the Amendment; commencement did not itself activate reserved seats.
ARTICLE 213 ORDINANCE: specified House-recess condition + immediate-action satisfaction -> State legislative competence; Act-like force, mandatory laying and expiry six weeks after later reassembly unless earlier ended. D.C. WADHWA (1987) and KRISHNA KUMAR SINGH (2017) reject routine repromulgation.

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PRELIMS TRAPS, REFORM AND MAINS ANSWER SPINE

PRELIMS FIREWALL: Governor is legislature component; not House member. Article 169: Assembly special majority; Parliament ordinary law. Article 174: six-month maximum gap; no fixed three sessions or annual sitting minimum. Council: 3+1 month ordinary-Bill delay; 14-day Money-Bill recommendation; no joint sitting. Article 192 route excludes Tenth Schedule. Article 212 shields procedural irregularity, not illegality. Article 213 is temporary and competence-bound. No invented current Council strength or uniform House-rule number.
REFORM MENU: minimum evidence-based sitting calendar; default committee scrutiny with stated exceptions; research and drafting support; protected Question Hour; reasoned/timely chair rulings; narrower confidence-linked whip; independent defection tribunal debate; modernise Council electorates and nominations; post-legislative review.
MAINSPINE: define -> locate exact Article -> classify text/statute/rule/convention/judgment -> explain mechanism -> name evidence -> test democratic/accountability effect -> state exception/status -> targeted reform -> qualified verdict.
VERDICT: Assembly primacy is constitutionally deliberate; legitimacy improves when primacy is matched by deliberation; impartial procedure; financial scrutiny and reviewable constitutional boundaries.